

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

# CASE OF LAKHATKIN AND OTHERS v. RUSSIA

*(Applications nos. 56926/18 and 18 others –*
*see appended list)*

JUDGMENT

STRASBOURG

12 January 2023

*This judgment is final but it may be subject to editorial revision.*



**In the case of Lakhatkin and Others v. Russia,**

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 8 December 2022,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

# THE FACTS

3. The list of applicants and the relevant details of the cases are set out in the appended table.

4. On the different dates, the applicants were taken to the police stations as administrative suspects of the offences related to public events. They were subsequently administratively convicted for participation in different public events.

5. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

# THE LAW

## I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

## II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law (...):
>
> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; (...)"

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018), and that the use of the escort measure be properly documented (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017, and *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, *Kalyapin*, cited above, §§ 76-79, and *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. It discerns nothing in the official records submitted to it to conclude that recourse to such procedures was justified, as required by the Russian law. In particular, the applicants were taken to the police station as administrative suspects, whereas there was no evidence or assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the Code of Administrative Offences, that is to establish the suspects' identity (see *Korneyeva*, cited above, §§ 34-36). It concludes that the national authorities failed to comply with the applicable rules of domestic procedure and considers that the applicants' escorting, arrest and detention were not "in accordance with a procedure prescribed by law".

10. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

## III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention (see appended table), given the relevant well-established case-law of the Court.

12. These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Code of Administrative Offences, *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, concerning disproportionate measures taken by the authorities against participants of solo manifestations, *Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013 and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016, concerning disproportionate measures taken by the authorities against participants of public assemblies).

13. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings and alleged restrictions on the right to examine witnesses.

## IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], nos. 1253/04 and 2 others, § 96, 11 December 2014, and, as a recent example, *Akhtyamov and Others v. Russia* [Committee], nos. 17105/18 and 8 others, §§ 15-16, 10 October 2022), the Court considers it reasonable to award to each of the applicants 3,900 euros (EUR) in just satisfaction for pecuniary and non-pecuniary damage and costs and expenses.

## FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds* that there is no need to deal separately with the applicants' remaining complaints under Article 6 of the Convention concerning the fairness of the proceedings and alleged restrictions on the right to examine witnesses;

6. *Holds*
   (a) that the respondent State is to pay to each of the applicants, within three months, EUR 3,900 (three thousand and nine hundred euros), plus any tax that may be chargeable on that amount, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 12 January 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

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|---|---|
| Viktoriya Maradudina | Darian Pavli |
| Acting Deputy Registrar | President |

# APPENDIX

## List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth<br>Representative's name | Start and end of unlawful detention;<br>other specific defects with the applicable case-law | Public event<br>Final domestic decision | Other complaints under well-established case-law |
|---|---|---|---|---|---|
| 1. | 56926/18<br>16/11/2018 | **Maksim Vladimirovich LAKHATKIN**<br>1995<br><br>Zhdanov Ivan Yuryevich | From 2.20 p.m. to 5.10 p.m. on 07/01/2018.<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).<br><br>A record of administrative arrest was compiled indicating that the measure had been necessary in order to ensure "the correct and expedient examination of the case".<br><br>No escorting record was compiled, but escorting was mentioned in the administrative arrest record. | On 07/01/2018, the applicant, with several other persons, gave leaflets and toy balloons in support to Mr A. Navalny near a metro station in Moscow.<br><br>Moscow City Court, 08/06/2018. | Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016). |
| 2. | 8396/19<br>31/01/2019 | **Igor Igorevich TELPUKHOVSKIY**<br>1997<br><br>Zhdanov Ivan Yuryevich | From 4.40 p.m. to 8.30 p.m. on 12/06/2017.<br><br>Absence of any records formalising the applicant's deprivation of liberty (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017).<br><br>Detention as an administrative suspect beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). | Anticorruption manifestation in Moscow on 12/06/2017.<br><br>Moscow City Court, 20/08/2018. | Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016). |
| 3. | 9017/19<br>31/01/2019 | **Yegor Aleksandrovich SAVKIN**<br>2000<br><br>Zhdanov Ivan Yuryevich | From 5.00 p.m. on 09/09/2018 to at least 3.00 a.m. on 10/09/2018.<br><br>A record of administrative escort was compiled indicating that the measure had been necessary in order to ensure "the expedient and correct examination of the case".<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to | Manifestation against the pension reform in St Petersburg on 09/09/2018.<br><br>St Petersburg City Court, 09/10/2018. | Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016). |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth<br>Representative's name | Start and end of unlawful detention;<br>other specific defects with the applicable case-law | Public event<br>Final domestic decision | Other complaints under well-established case-law |
|---|---|---|---|---|---|
| | | | compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | | |
| 4. | 12717/19<br>26/02/2019 | **Ilya Sergeyevich KUNAKH**<br>1990<br><br>Zhdanov Ivan Yuryevich | On 09/09/2018 (exact time is unclear).<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019) | Manifestation against the pension reform in St Petersburg on 09/09/2018.<br><br>St Petersburg City Court, 11/10/2018. | Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016). |
| 5. | 12154/20<br>27/02/2020 | **Dmitriy Petrovich DONSKOV**<br>1982<br><br>Memorial Human Rights Centre | From 1.40 p.m. to 10.55 p.m. on 12/06/2019.<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22).<br><br>Absence of any records formalising the applicant's deprivation of liberty (see *Timishev*, cited above, § 21).<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). | Manifestation in support of Mr Ivan Golunov in Moscow on 12/06/2019.<br><br>Moscow City Court, 28/08/2019. | Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016). |
| 6. | 14217/20<br>05/03/2020 | **Andrey Vasilyevich STATOV**<br>1983<br><br>Bayturina Svetlana Nikolayevna | From 5.45 p.m. on 03/08/2019 (no exact end time).<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's | Manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019.<br><br>Moscow City Court, 06/09/2019. | Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in administrative-offence proceedings (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of peaceful public assemblies (*Kasparov and Others v. Russia* |

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|---|---|---|---|---|---|
| | | | identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). | | no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016). |
| 7. | 14536/20<br>29/02/2020 | **Kirill Feliksovich VODINSKIY**<br>1981<br><br>Molokanova Tatyana Valeryevna | From 2.30 p.m. to 11.15 p.m. on 03/08/2019.<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | Manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019.<br><br>Moscow City Court, 30/08/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence case (see *Karelin v. Russia*, cited above, §§ 69-84).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |
| 8. | 14538/20<br>29/02/2020 | **Anatoliy Sergeyevich KOKOREV**<br>1987<br><br>Molokanova Tatyana Valeryevna | From 2.30 p.m. to 11.15 p.m. on 03/08/2019.<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | Manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019.<br><br>Moscow City Court, 30/08/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence case (see *Karelin v. Russia*, cited above, §§ 69-84).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |
| 9. | 14540/20<br>29/02/2020 | **Arkadiy Yuryevich DUBNOV**<br>1949<br><br>Molokanova Tatyana Valeryevna | From 2.30 p.m. to 10.50 p.m. on 03/08/2019.<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). | Manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019.<br><br>Moscow City Court, 30/08/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence case (see *Karelin v. Russia*, cited above, §§ 69-84).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |

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|---|---|---|---|---|---|
| | | | Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | | |
| 10. | 14716/20<br>10/03/2020<br><br>and<br><br>45136/20<br>17/09/2020 | **Anna Yevgenyevna LOYKO**<br>1999<br><br>Timakova Kristina Igorevna<br><br>Gilmanov Mansur Idrisovich | From 7.50 p.m. on 14/07/2019 to 2.20 a.m. on 15/07/2019.<br><br>Then from 2.50 p.m. on 03/08/2019 (no exact end time).<br>Then from 15/07/2020 to 16/07/2020 (exact time is unclear).<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22).<br><br>Detention as an administrative suspect after the offence record had been compiled, until the hearing before the first instance court (see *Frumkin v. Russia*, no. 74568/12, §§ 149-52, 5 January 2016, and *Korneyeva v. Russia*, no. 72051/17, § 35, 8 October 2019). | Two manifestations for fair elections in Mosgorduma in Moscow on 14/07/2019 and 03/08/2019.<br><br>Moscow City Court, on 18/09/2019 and 10/09/2019 respectively.<br><br>Manifestation against amendments to the Russian Constitution in Moscow constitution on 15/07/2020.<br><br>Moscow City Court, 22/07/2020. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence cases (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |
| 11. | 15047/20<br>12/03/2020 | **Yakov Borisovich LETUCHIY**<br>1987<br><br>Molokanova Tatyana Valeryevna | From 2.30 p.m. to 10.50 p.m. on 03/08/2019.<br><br>Absence of any records formalising the applicant's deprivation of liberty (see *Timishev v. Russia*, cited above, § 21).<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | Manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019.<br><br>Moscow City Court, 12/09/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence cases (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |
| 12. | 15074/20<br>12/03/2020 | **Mikhail Mikhaylovich BOROSH**<br>1987<br><br>Pomazuyev Aleksandr Yevgenyevich | From 3.00 p.m. on 03/08/2019 to 00.05 a.m. on 04/08/2019.<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October | Manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019.<br><br>Moscow City Court, 08/10/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence cases (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |

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|---|---|---|---|---|---|
| | | | 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | | |
| 13. | 15975/20<br>16/03/2020 | **Daniel Igorevich ABRAMOV**<br>1995 | From 4.30 p.m. to 11.30 p.m. on 03/08/2019.<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22).<br><br>Absence of any records formalising the applicant's deprivation of liberty (see *Timishev*, cited above, § 21). | Manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019.<br><br>Moscow City Court, 16/09/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence cases (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |
| 14. | 16328/20<br>15/03/2020 | **Dmitriy Andreyevich BONDAR**<br>1990<br><br>Bayturina Svetlana Nikolayevna | From 6.30 p.m. 10/08/2019 (no exact end time).<br><br>Escorting in order to draw "administrative case-file", while administrative offence record had been compiled in the police van on the spot (*Frumkin*, cited above, §§ 149-52, and *Korneyeva*, cited above, § 35). | Manifestation for fair elections to Mosgorduma in Moscow on 10/08/2019.<br><br>Moscow City Court, 16/09/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence cases (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |
| 15. | 16330/20<br>15/03/2020 | **Andrey Sergeyevich TRAKHANOV**<br>1967<br><br>Bayturina Svetlana Nikolayevna | From 7.00. p.m. 10/08/2019 (no exact end time, at least 10.00 p.m.).<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | Manifestation for fair elections to Mosgorduma in Moscow on 10/08/2019.<br><br>Moscow City Court, 18/09/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence cases (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |
| 16. | 16331/20<br>15/03/2020 | **Roman Alekseyevich ARKUSOV**<br>1991 | From 6.30 p.m. to 11.30 p.m. on 10/08/2019.<br><br>Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to | Manifestation for fair elections to Mosgorduma in Moscow on 10/08/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence cases (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016). |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth<br>Representative's name | Start and end of unlawful detention;<br>other specific defects with the applicable case-law | Public event<br>Final domestic decision | Other complaints under well-established case-law |
|---|---|---|---|---|---|
| | | Bayturina Svetlana Nikolayevna | compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).<br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | Moscow City Court, 18/09/2019 | Art. 11 (2) - disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin*, cited above, §§ 102-42). |
| 17. | 17656/20<br>25/03/2020 | **Maksim Sergeyevich GUSTOV**<br>1998<br><br>Mikhaylova Varvara Dmitriyevna | From 3.20. p.m. on 10/08/2019<br>(no exact time, at least until 8.20. p.m.).<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22). | Solo static demonstration for fair elections in St Petersburg on 10/08/2019.<br><br>St Petersburg City Court, 26/09/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence cases (*Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016).<br><br>Art. 10 (2) - disproportionate interference with the applicants' freedom of expression (see *Novikova and Others v. Russia*, nos. 25501/07 and 4 Others, §§ 106-225, 26 April 2016). |
| 18. | 17805/20<br>27/03/2020 | **Ivan Vladimirovich IVANOV**<br>1989<br><br>Balog Natalya Andreyevna | From 3.50 to 10.15 p.m. on 03/08/2019.<br><br>Detention as an administrative suspect: beyond the three-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22).<br><br>Absence of any records formalising the applicant's deprivation of liberty (see *Timishev v. Russia*, cited above, § 21). | Manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019.<br><br>Moscow City Court, 10/10/2019. | Art. 6 (1) - lack of impartiality of tribunal - lack of the prosecuting party in the administrative-offence case (see *Karelin v. Russia*, no. 926/08, 20 September 2016).<br><br>Art. 11 (2) -disproportionate measures against participants of public assemblies (see *Kasparov and Others*, cited above, §§ 84-97, and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016). |